29 September 2025

Saint Raphael Pty Ltd

Address: Unit 401

The Foundry,

74 Prestwich Street,

De Waterkant,

8001

Email: yaseenh@sanctura.co.uk; alidaw@sanctura.co.uk

Dear Client

PROPOSAL FOR OUTSOURCED FRACTIONAL HR, RECRUITMENT AND EMPLOYEE RELATIONS (ER) MANAGEMENT HR SERVICES FOR SAINT RAPHAEL PTY LTD.

We appreciate the opportunity to present this proposal for Fractional HR, recruitment and ER services to Saint Raphael Pty Ltd. Following our insightful discussions, we are excited to outline how our services can effectively support your organisation.

Background to the Proposal

Saint Raphael Pty Ltd has identified the necessity for comprehensive HR and Recruitment services as well, and the ER and OptiWorX^{360} (Pty) Ltd are poised to deliver exactly that.

Our full-service offering encompasses all aspects of payroll, ER, Recruitment and the full HR management suite .

Phone: 072 343 7379; 087 822 2797

Email: siraaj@optiworx.co.za; info@optiworx.co.za

Address: The Crescent, Pinelands, Cape Town, 7405

Bushbuck Lane, Monument Park, Pretoria, 0181

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Confidential Information of OptiWorx ^{360} (PTY) LTD.

OptiWorX 360
Your trusted partner, in business success

Master Services Agreement (MSA)

by and between

OptiWorX^{360} (Pty)Ltd,
[Registration Number 2025 / 266091 / 07]

"**Service Provider**"

and

Saint Raphael Pty Ltd

Registration Number 2024/407558/07

"**Client**"

Outsourced ER, Recruitment and HR Service Management "**Agreement**"

Background

WHEREAS the Client seeks the services of the Service Provider in line with its evolving business requirements and;

WHEREAS the Service Provider possesses the required skills and experience to deliver the sought services effectively by the Client and;

WHEREAS the Client wishes to engage the Service Provider for professional services, consulting and advisory support, (the "Services" as further defined in Section 1 below) and;

WHEREAS, both Parties wish to define the terms and conditions governing the Service Provider's provision of the Services to the Client and;

NOW THEREFORE, in acknowledgement of the foregoing considerations, the Parties mutually agree as follows:

Definitions:

Effective Date: This Agreement shall take effect upon all parties having affixed their signatures to the Agreement.

Implementation date: The services outlined in this agreement will be implemented as of 1 October 2025 – 30 September 2026.

Parties: The Client and Service Provider are referred to collectively as the parties.

Service Provider: refers to any employee, consultant, director, advisor, freelancer, independent contractor or other such person, specifically assigned by the Service Provider to render the specified services.

1. SCOPE OF THE SERVICES

1.1. **Summary of Services**

The Service Provider is committed to managing all recruitment, employee relations and human resource (as per the attached addendums) compliance for the client, ensuring a comprehensive service.

1.2. **Services**

Kindly refer to addendum A annexed to this agreement for comprehensive information on all ER, recruitment, and HR services.

2. OBLIGATIONS

2.1. The Client hereby authorizes Service Provider to act as its trusted representative when engaging with third parties regarding matters within the agreed scope of services

2.1.1. Insofar as the Service provider is required or obliged in accordance with the scope of the services to be performed for the Client as set out in this agreement, to interact with a third party for and on behalf of the Client, then the Client hereby confirms that the Service provider is hereby authorized to represent the Client as its duly authorised agents.

2.1.2. Apart from the authorizations detailed above, Service Provider will not hold the authority to bind the Client, incur expenses, enter into contracts, or make any representations on behalf of the Client regarding matters outside the defined parameters of this Agreement. This refined version emphasizes professionalism, clarity,

and commitment to service, adding a persuasive touch to the proposal.

2.1.3. Service provider shall at all times act as an independent contractor, and nothing in this Agreement is intended to, or shall be construed to, create a partnership, agency, joint venture, employment, or similar relationship. No employees or contractors of either Party shall at any time operate as or have the status of an employee, trustee, partner, or agent (except as and when Service Provider is acting as the Client's agent as aforesaid), of the other.

2.1.4. Where, in the course of providing the services set out in this Agreement, either Party believes that a potential conflict of interest may arise between Service Provider duties to the Client under this Agreement and the interests of Service Provider (Pty) Ltd (or their Affiliates), then that Party shall promptly notify the other Party of the same and the Parties shall use reasonable commercial endeavours to resolve the conflict, failing which either Party may terminate this Agreement in terms of the termination clause below.

2.1.5. Service Provider will manage the ER, recruitment and HR, and will provide agreed deliverables monthly as stipulated. The Client may request additional HR and UIF management services based on specific requirements. These services are quoted on an individual or project basis. Services are limited to regular monthly offerings detailed in this proposal. Consulting and additional technical work will be discussed with management and quoted on a separate basis.

3. TIMING AND DEADLINE

Due to the nature and scope of the assignment, the Parties will collaboratively establish specific deliverables as identified.

4. FEES AND BILLINGS

4.1. Service Provider the fees charged by the Service Provider (Pty) Ltd reflect the dedicated time spent on the Client's affairs by our seasoned partners and staff, exclusive of VAT and disbursements, and are aligned with the levels of expertise and responsibility involved.

4.2. Below is an estimate of client monthly and annualised costs (excluding VAT), based on the current services required. Additional services are offered at a preferential rate by way of a separate agreement between the Parties.

12 MONTH FEE STRUCTURE (Monthly Breakdown)

Fractional HR Services (Capped threshold at 10 hours)	R12,567
ER CCMA Representation registration fee (Annual)	R 750
ER Subscription	R 3,250

Final Monthly Fee Structure (20% discount)

Fractional HR Services (estimated at 10 hours per month)	R10,053
ER Subscription (28 hrs for 12 months) Linked to Head Count (13)	R 2,600
Total Monthly Fee	R12,653
ER CCMA Representation registration fee (Annual Payment)	R 750

All fees set forth in this agreement is exclusive of VAT. It is further agreed that while this is a fixed fee agreement, time and outputs can be reallocated to other areas linked to business priorities. The service provider will track all deliverables and submit a timesheet for hours worked.

5. TERM AND TERMINATION

5.1. This Agreement is effective as of the Effective Date set forth above.

5.2. Voluntary Termination: Either party may terminate this Agreement in its entirety or one (1) or more services, without cause, upon the issuing of a termination notice. Either party is obligated to give 90 days' notice of termination in terms of this clause.

5.3. Breach Termination: Either Party may terminate this Agreement in its entirety or one (1) or more services for a material breach by the other Party if the other Party's material breach of any provision of this Agreement is not cured within thirty (30) days after receipt of written notice describing such breach.

5.4. Termination of one or more services shall only terminate the applicable services and not the Agreement in its entirety. Termination of the Agreement shall terminate all existing services. Within three (3) business days after expiration or termination of this Agreement or any services for any reason, (a) the Service Provider will, upon payment in full of all applicable

Fees by Client, turn over a copy of any and all relevant documents and passwords, (b) each Party shall return Confidential Information of the other Party, including all copies thereof or notes made in reference thereto. Client will pay the Service Provider for any outstanding Fees for Services performed before the effective date of termination and reimburse for expenses that are properly incurred before notice of termination of this Agreement, and which are approved in advance in writing by an authorized Client representative.

6. CONFIDENTIALITY

6.1. Definition of Confidential Information

"Confidential Information" means any information related to a Party's (the "Disclosing Party") business and current, future and proposed products and service, employee data, research, development, design details and specifications, financial information, procurement requirements, client lists, business forecasts, sales information, marketing plans and business plans, in each case whether or not marked as "confidential" or "proprietary."

6.2. Non-disclosure and Non-use Obligations

The Party receiving any Confidential Information (the "Receiving Party") of a Disclosing Party will not: (a) use Disclosing Party's Confidential Information except solely as necessary to perform under this Agreement; or (b) disseminate or in any way disclose the Disclosing Party's Confidential Information to any third party. Receiving Party shall treat all Confidential Information with the same degree of care as Receiving Party accords to Receiving Party's own confidential information, but in no case shall Receiving Party use less than reasonable care. Receiving Party shall immediately give notice to Disclosing Party of any unauthorized use or disclosure of the Confidential Information. Receiving Party shall assist Disclosing Party in remedying any unauthorized use or disclosure of the Confidential Information. Receiving Party agrees not to communicate any information to Disclosing Party in violation of the proprietary rights of any third party.

6.3. Exclusions from Non-disclosure and Non-use Obligations

Receiving Party's obligations under above sections do not apply to any Confidential Information that Receiving Party can demonstrate through written evidence: (a) was in the public domain at or subsequent to the time the Confidential Information was communicated to Receiving Party by

Disclosing Party through no fault of Receiving Party; (b) was rightfully in Receiving Party's possession free of any obligation of confidence at or subsequent to the time the Confidential Information was communicated to Receiving Party by Disclosing Party; or (c) was independently developed by Receiving Party without use of, reference to, or reliance on any Confidential Information communicated to Receiving Party by Disclosing Party. A disclosure of any Confidential Information by Receiving Party (i) in response to a valid order by a court or other governmental body, or (ii) as otherwise required by law will not be considered to be a breach of this Agreement; provided, however, that Receiving Party provides prompt prior written notice thereof to Disclosing Party to enable Disclosing Party to seek a protective order or otherwise prevent the disclosure; and provided, further that any Confidential Information so disclosed shall retain its confidential nature for all other purposes.

6.4. Use of Name

Neither Party may use or disclose the name, logo or other trademark or service mark of the other Party for any purpose, without the prior written consent of the other Party in each instance, which may not be unreasonably withheld by the other Party.

6.5. Ownership and Return of Confidential Information

All Confidential Information and any materials and items that Disclosing Party furnishes to Receiving Party is the sole and exclusive property of Disclosing Party. Receiving Party agrees to keep all Disclosing Party Property at Receiving Party's premises unless otherwise permitted in writing by Disclosing Party. Within five (5) days after any request by Disclosing Party, Receiving Party shall destroy or deliver to Disclosing Party, at Disclosing Party's option, (a) all Disclosing Party property and (b) all materials and items in Receiving Party's possession or control that contain or disclose any Confidential Information; provided, however that Receiving Party may retain one copy of the Confidential Information for records retention and/or compliance purposes; and provided, further, that Receiving Party shall not be required to delete any Confidential Information that is stored as part of routine systems backups. Upon request, Receiving Party will provide Disclosing Party a written certification of Receiving Party's compliance with Receiving Party's obligations under this section.

7. UNDERTAKINGS

7.1. Mutual Undertakings

Each Party hereby represents and undertakes to the other Party that such Party's execution, delivery and performance of this Agreement does not and will not: (i) conflict with or violate any Applicable Laws or governmental orders; or (ii) conflict with or require any consent under any contract, license, permit, franchise or other agreement to which it is a Party.

7.2. Service Provider Undertakings

Without limiting the representations set forth above, the Service Provider represents and undertakes to the Client on behalf of itself and its Personnel that:

7.2.1. The Service Provider shall perform the services and discharge its duties hereunder (i) consistent with relevant industry standards, (ii) in a timely manner, and in accordance with any timetables set forth and (iii) by qualified and experienced personnel;

7.2.2. The Service Provider shall use commercially reasonable efforts to ensure that the Service Provider and its Personnel shall act, in relation to the Services, in compliance with all applicable laws and regulations that are applicable to the Service Provider.; and the Service Provider's provision of the Services and Works and Materials hereunder, and Client's exercise of the rights granted to Client hereunder to receive and use the Services and Works and Materials do not knowingly infringe, misappropriate or conflict with any South African patent issued as of the Effective Date.

GENERAL TERMS AND CONDITIONS

8. ASSIGNMENT

This Agreement may not be assigned or transferred, whether by operation of law or otherwise, by either Party without the prior written consent of the other Party.

To the extent a Party is permitted to assign this Agreement or any part of it, all provisions hereof shall be binding upon such Party's successors or assigns.

9. NOTICES

Any notice hereunder shall be deemed to be sufficiently given, and any delivery hereunder deemed made when delivered via electronic email and confirmation of receipt has been issued verbally or in writing.

10. MODIFICATIONS; WAIVER

Any changes to this Agreement, including this clause, shall not be enforceable unless agreed to by both Parties, in writing, and duly executed by authorized representatives of both Client and Service Provider. No waiver by any Party of any of the provisions hereof will be effective unless explicitly set forth in writing and signed by the Party so waiving. Except as otherwise set forth in this Agreement, no failure to exercise, or delay in exercising, any right, remedy, power, or privilege arising from this Agreement will operate or be construed as a waiver thereof; nor will any single or partial exercise of any right, remedy, power, or privilege hereunder preclude any other or further exercise thereof or the exercise of any other right, remedy, power, or privilege.

11. HEADINGS; INTERPRETATION

11.1. Paragraph headings are shown herein for convenience only and shall not affect the meaning or interpretation hereof. This Agreement will be construed without regard to any presumption or rule requiring construction or interpretation against the Party drafting an instrument or causing an instrument to be drafted. The Exhibits referred to herein will be construed with, and as an integral part of, this Agreement to the same extent as if they were set forth verbatim herein.

11.2. Contra Proferentem rule of interpretation of contracts, in terms of which an ambiguous contract is interpreted against the party that drafted it, shall not apply to this Agreement.

12. PRESS RELEASES

Except as may be required by Applicable Law or listing standard, neither Party will issue or release any public announcement, statement, press release, or other publicity relating to this Agreement without the prior written consent of the other Party in each instance.

13. FORCE MAJEURE

Neither Party shall be liable for the failure to perform its obligations under this Agreement due to events beyond such Party's reasonable control including, but not limited to, strikes, riots, wars, fire, acts of God or acts in compliance with any applicable law, regulation or order (valid or invalid) or any court or governmental body, or any pandemic or global epidemic (including but not limited to any regulations or business restrictions related thereto).

14. LEGALITY AND SEVERABILITY

If any portion of this Agreement is determined to be illegal or unenforceable under the law, then that portion shall be stricken from the Agreement without effect on the remainder of the Agreement that can be given effect independently of such invalid terms.

15. NO AGENCY

Each of the Parties will be deemed to be an independent contractor and not an agent, joint venture, partner or representative of the other, and neither may create any obligations or responsibilities on behalf of or in the name of the other. Nothing contained in this Agreement, nor any marketing or other materials referring to the Parties, will be construed as creating any agency, partnership, joint venture, or other form of joint enterprise, employment, or fiduciary relationship between the Parties. Under no circumstances may Service Provider hold itself out to be a partner, employee, franchisee, representative, servant, or agent of Client.

16. FURTHER ASSURANCES

Each Party will, upon the reasonable request of the other Party and at the requesting Party's sole cost and expense, promptly execute such documents and perform such acts as may be necessary to give full effect to the terms of this Agreement.

17. ARBITRATION

17.1. The Parties shall use all reasonable efforts to resolve any dispute that may arise under this Agreement through good faith negotiations. In the event that the Parties are unable to reach a settlement. If the Parties are unable to resolve the dispute, the dispute shall, unless otherwise agreed by the Parties in writing, be referred for determination to an expert, allocated by Arbitration Foundation of South Africa (AFSA) in terms of the AFSA rules of arbitration.

17.2. The decision of the arbitrator shall be final and binding and may at the request of either of the Parties be made an Order of Court, in a Court of competent jurisdiction, which shall include an order on legal costs. Should the enforceability of the award be a point of contention, both parties agree that the award can be made an order of court in terms of the New York Convention of 1958.

17.3. Notwithstanding the foregoing, either Party shall have the right to seek ex parte relief in the

event of an actual or threatened breach of confidentiality or intellectual property provisions.

18. CHOICE OF LAW

The validity, enforceability and interpretation of this Agreement shall be construed in accordance with and governed by the laws the Republic of South Africa.

19. NO THIRD-PARTY BENEFICIARIES

This Agreement is for the sole benefit of the Parties, their respective permitted successors and assigns, and nothing herein, express or implied, is intended to or will confer on any other Person any legal or equitable right, benefit, or remedy of any nature whatsoever under or by reason of this Agreement.

20. ENTIRE AGREEMENT

This Agreement constitutes the sole and entire agreement between the Parties with respect to the subject matter hereof, and supersedes any prior and contemporaneous understandings and agreements, both written and oral, with respect to such subject matter. All prior agreements between the Parties pertaining to similar Services are hereby terminated as of the Effective Date of this Agreement.

21. COUNTERPARTS

This Agreement may be executed in counterparts, each of which will be deemed an original, but all of which together will constitute one and the same instrument. Counterparts may be delivered by electronic mail or other transmission method, and any counterpart so delivered will be deemed to have been duly and validly delivered and be valid and effective for all purposes.

22. SERVICE LEVEL AGREEMENT AND STANDARD OPERATING PROCEDURES

Upon signing of this agreement, a detailed service level agreement comprising all standard operating procedures will be formalised, documented, and implemented in collaboration for sign-off by both parties before the implementation date.

IN WITNESS WHEREOF, the Parties have executed this Agreement effective as of the date first written below.

On behalf of the Service Provider:

Signed at_____on this_____day of_____

_____ _____

Name: Siraaj Adonis Name: Herman Perry

Designation: CEO Designation: COO

_____

Signature 01: On behalf of the Client:

Signed at_____on this_____day of_____ 2025.

Name: _____

Designation: _____

_____

Signature 02: On behalf of the Client:

Name: _____

Designation: _____

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Your trusted partner, in business success

ADDENDUM A

DELIVERY	HR DELIVERABLES	DESCRIPTION | OUTCOME	ESTIMATED HOURS	NUMBER OF SESSIONS	TOTAL ESTIMATED HOURS
Org Review and Design	Review current | go to (scaling) | Gap structure	Identify gaps and business risks. Ensure the current structure supports current and future growth ambitions			
	Update structure with findings & recommendations	Ensure the org design is set up accordingly & risks identified			
	Business Org Design sign off	Approval of findings, recommendations & monitoring.			
Compliance | Statutory | Employment Contracts | Payroll | Business Practice review	Contract design (FTC, PFTC, PPC, FPC)	Review for any statutory, contractual, and business risks, as well as identify inconsistencies. Has an overall impact on current & future business delivery. (Attraction, retention, disciplinary, exits, employee structures, remuneration & benefits.	4	2	8
	Policy/ ies review (Employee Handbook, Disciplinary, other)		8	2	16
	Template/s design, SOP workflow review	Supports policy implementation, creating efficiencies & simplified, clear processes/ Supports any workflow challenges	4	2	8
Approvals	Sign off and approval	Ensure all findings and recommendations are approved by the client	2	2	4
Recruitment	Role job profiling	360 candidate journey process to ensure we have identified, reviewed & checked profile & culture fit.	1,5	3	4,5
	Current role grade & benchmark		1,5	3	4,5
	Advertising		1	3	3
	Brief RoadMap		1	3	3
	Screen		3	3	9
	Shortlist		3	3	9
	Interview1		3	3	9
	Reference and checks		1	3	3
	Offer		1	3	3
Employee Onboarding	Onboarding design and implementation	Ensure the onboarding & the induction experience have clear expectations, ensuring accelerated learning & training, and manage any concerns timeously.			
	90-day Induction				
	Probation review template				
	Business partnering				
Performance Management	Set/ review Company Strategic objectives	Any performance management or variable pay will be driven by clear Company Strategic objectives.			
	Design Management and employee performance reviews	Sets the guidance for base pay, salary vs variable pay			
	Design variable pay incentives	Pay for role-specific requirements, reward for performance-driven outcomes			

	Link performance management goals to incentives and variable pay				
Rem and Ben	Review remuneration & Benefits	Assists with efficiencies and to attract, retain & reward			
	Streamline				
	Compensation structure				
Payroll Management	Audit payroll data & information	Reduces compliance and potential conflicting employment contracting challenges	6	2	12
	Ensure all rules and processes are aligned with employee data	Reduces compliance and potential conflicting employment contracting challenges	4	2	8
	Process flow efficiencies	Automation results in streamlined and accurate business reporting and reduces the administration burden and potential human errors			
	Integration with finance departments				
	Optimise Pay Space (Payroll platform) to automate reporting				
	W|M|Q|A|A reporting templates				
	Management access to live reports				
Reporting & analysis	Analyse trends and people forecasting linked to attraction, retention, engagement, wellbeing & turnover	Automation results in streamlined and accurate business reporting, providing insights to mitigate staff turnover, engagement, and attraction trends			
	Design various insightful objective people reports for business				
	Automate & link reporting for Business review				
Automation	ATS	Generally required where business reporting is critical for Boards and Management reports. A less siloed approach for people manages as all people movements are integrated for efficient people management			
	Onboarding				
	Payroll				
	Performance				
	Compensation				
	E-Learning				
	Employee Wellness				
	Rewards and Recognition				
Change Management |Training and Development	Focused People (employees and Leadership) training linked to any implementation requirement or identified business need.	Upskills all levels of management and people on various HR systems, transformational, and training needs implementation. Critical for change management and shifting towards a leader-led culture.			
Meeting Management	General meeting facilitation		1	12	12

	Compensation committees	Strategic Business Advisory Support. Proven experience on various committees and boards, locally and globally.			
	Leadership Meetings				
	Monthly | Quarterly & Annual meetings				
	Retirement fund committee meetings				
	Medical Aid committee meetings				
	EE & WSP meeting facilitation				
	Board Meetings				
FRACTIONAL HR SERVICES (12 MONTH PERIOD)					**116**

EMPLOYEE RELATIONS IS COSTED SEPARATELY (EST) PER ANNUM (13 employees)					**HOURS**
EMPLOYEE RELATIONS	Grievance management		**28**	**1**	**28**
	Disciplinaries				
	CCMA				
	Disciplinary and CCMA prep				

EMPLOYEE RELATIONS SERVICES

The Service Provider shall provide services tailored to the Client's industrial relations and labour law needs, including but not limited to:

- Labour compliance audits and annual reviews
- Drafting of employment contracts, policies, and procedures
- Disciplinary, incapacity, and retrenchment assistance
- Union negotiations, collective bargaining, and strike support
- CCMA/Bargaining Council representation
- Labour Court representation
- Legal templates and best-practice guides
- Webinars, training
- Telephonic/email advisory services